

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 9354/17
Nurlan SARIYEV against Azerbaijan
and 14 other applications
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 8 September 2022 as a Committee composed of:

Stéphanie Mourou-Vikström*, President,*
Ivana Jelić,
Kateřina Šimáčková*, judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants and their representatives is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies were communicated to the Azerbaijani Government ("the Government"). The applicants' other complaints based on the same facts were also communicated under Article 6 of the Convention, given the relevant well-established case-law of the Court.

The applicant in application no. 9367/17 died on 18 April 2018. On 6 November 2018 Ms Shafag Kamal gizi Samadova, the applicant's sister, expressed her wish to continue the proceedings before the Court in the applicant's stead. The Court notes that in various cases in which an applicant has died in the course of the Convention proceedings, it has taken into account the statements of the applicant's heirs or of close family members expressing the wish to pursue the proceedings before the Court (see, among other

authorities, *Jėčius v. Lithuania*, no. 34578/97, § 41, ECHR 2000-IX; *Pisarkiewicz v. Poland*, no. 18967/02, §§ 30-33, 22 January 2008; and *Ergezen v. Turkey*, no. 73359/10, §§ 27-30, 8 April 2014). The Court has accepted that the next-of-kin or heir may in principle pursue the application, provided that he or she has sufficient interest in the case (see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 97, ECHR 2014, and *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others, § 86, 12 December 2017). In view of the above and having regard to the circumstances of the case, the Court holds that Ms Shafag Kamal gizi Samadova has standing to continue the present proceedings in her late brother's stead.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants and the applicant's heir in application no. 9367/17 agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides that the applicant's sister and heir in application no. 9367/17 can pursue the application in her late brother's stead;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 29 September 2022.

Viktoriya Maradudina Acting Deputy Registrar	Stéphanie Mourou-Vikström President

APPENDIX

List of applications raising complaints under Articles 11 and 6 of the Convention (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial in administrative offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	9354/17 11/01/2017	**Nurlan Sakhavat oglu SARIYEV** 1990	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
2.	9358/17 12/01/2017	**Kazim Riza oglu IMANOV** 1990	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
3.	9364/17 12/01/2017	**Majnun Ahmad oglu PIRALIYEV** 1991	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

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4.	9367/17 11/01/2017	**Araz Kamal oglu SAMADOV** Born in 1975 Deceased in 2018 Applicant's heir **Shafag Kamal gizi SAMADOVA** 1976	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	Date of receipt of the declaration of the applicant's heir 05/08/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
5.	83017/17 01/12/2017	**Ilham Telman oglu HUSEYNOV** 1983	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
6.	1425/18 19/12/2017	**Yalchin Abdulla oglu ABDULLAYEV** 1975	Ruslan MUSTAFAZADE Sumgayit	05/08/2022	05/08/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
7.	12721/18 02/03/2018	**Emil Rafig oglu SALIMOV** 1991	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

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8.	16202/18 27/03/2018	**Sagif Asgar oglu GURBANOV** 1974	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
9.	16204/18 27/03/2018	**Emil Heybatgulu oglu MANIYEV** 1988	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
10.	17251/18 30/03/2018	**Bahruz Gazanfar oglu HASANOV** 1981	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
11.	17358/18 30/03/2018	**Agil Ali oglu MAHARRAMOV** 1988	Ruslan MUSTAFAZADE Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
12.	17747/18 02/04/2018	**Ruslan Shamil oglu NASIROV** 1994	Ruslan MUSTAFAZADE Sumgayit	05/08/2022	29/07/2022	2,600	400

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			Asabali MUSTAFAYEV Sumgayit				(to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
13.	17752/18 02/04/2018	**Yalchin Abdulla oglu ABDULLAYEV** 1975	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
14.	17977/18 04/04/2018	**Maharram Shahin oglu RZAYEV** 1995	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
15.	18596/18 02/04/2018	**Fuzuli Alasgar oglu HUSEYNOV** 1964	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	05/08/2022	29/07/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

[1] Plus any tax that may be chargeable to the applicants or the applicant's heir in application no. 9367/17.
[2] Plus any tax that may be chargeable to the applicants or the applicant's heir in application no. 9367/17.